

9. No appearance is required at the May 6, 2026 hearing.

10. 9:00 AM CASE NUMBER: C24-00225
CASE NAME: MONICA DUARTE VS. JORGE FIGUEROA
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT (CONTINUED FROM 3/4/26)
FILED BY: FIGUEROA, JORGE
TENTATIVE RULING:

Before the Court is Defendant Jorge Figueroa's Demurrer to Plaintiffs' Second Amended Complaint.

Factual Allegations and Procedural Background

Plaintiffs were both residents of Quail Lodge Retirement Community, an independent senior living community in Antioch, California. (¶2, 10.) They each had a separate lease with Sunshine Retirement Living and/or Sunshine Retirement Living LLC ("Sunshine Entities"). (¶ 10.) Defendant Jorge Figueroa worked at Quail Lodge as the Executive Director while Plaintiff's were residents there. (¶3, 10.)

In August 2023, Plaintiffs intended to get married and were invited by the Quail Lodge staff to get married at the facility. (¶ 10.) Thereafter, Plaintiffs allege that the staff and residents began to assault and harass them. (¶¶ 11-19.) Following these actions, Ms. Duarte was evicted in mid-September 2023, and Mr. Bullock was evicted on October 31, 2023. (¶ 14, 18.)

Specific to Defendant Figueroa, the SAC alleges that he made verbal threats, posted an eviction notice on Ms. Duarte's door, did not explain why she was being evicted, and generally made Plaintiffs feel unsafe and unwelcome. (e.g. ¶¶ 13-15, 55.)

Plaintiff filed their Complaint on January 29, 2024. A First Amended Complaint was filed on March 8, 2024, asserting 14 causes of action. The Sunshine Entities demurred to the FAC, which was sustained as to all causes of action. Thereafter, the Second Amended Complaint was filed on July 17, 2024, alleging the same 14 causes of action. The Sunshine Entities filed a motion for judgment on the pleadings. The MJOP was granted as to: violation of Bane Act (1st CoA); negligent infliction of emotional distress (5th CoA); intrusion into private affairs (7th CoA); and breach of implied warranty of habitability (9th CoA).

The causes of action that remain and to which Defendant Figueroa demurs are: (2nd CoA) assault; (4th CoA) intentional infliction of emotional distress; (6th CoA) negligence; (8th CoA) retaliation – violation of Civil Code § 1942.5; (10th CoA) breach of covenant of quiet enjoyment; (11th CoA) wrongful eviction; (12 CoA) elder abuse; and (13th CoA) negligent hiring, training, supervision, & retention.

Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the

plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be "liberally construed" and a demurrer "overruled if any cause of action is stated by the plaintiff." (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP 430.40; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer may be filed to one of several causes of action in a complaint. (Cal. R. Ct. 3.1320(b).)

Analysis

Assault

"The essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm. (*So v. Shin* (2013) 212 Cal.App.4th 625, 668-69.)

As noted by Defendant, there are no allegations relevant to the first element directly related to Mr. Figueroa. There are specific allegations relating to Mikki Estrada and her husband's actions of making physical contact with Ms. Duarte and threatening harmful contact. (¶ 17.) As to Mr. Figueroa, it is alleged that he yelled at Ms. Duarte and that he generally 'threatened' her 'on five of six different occasions.' (¶ 36-37.) There are no allegations, however, that he ever intended to cause any contact or threatened to touch Ms. Duarte in any way. As to Plaintiff Bullock, there are not even any allegations that Mr. Figueroa interacted directly with him in any way.

In opposition, Plaintiffs' counsel indicates that he informed Defendants' counsel that he would be willing to dismiss this cause of action. No such dismissal was filed. As such, the Court must rule on the demurrer.

Defendant's demurrer to the assault cause of action is **sustained**.

Intentional Infliction of Emotional Distress

"The elements of the tort of intentional infliction of emotional distress are: '(1) Extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.'" (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903 *quoting Davidson v. City of Westminster* (1982) 32 Cal.3d 197, 209.) "The defendant must have engaged in 'conduct intended to inflict injury or engaged in with the realization that injury will result.'" (*Ibid.*)

"In order to avoid a demurrer, the plaintiff must allege with 'great[] specificity' the acts which he or

she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (*Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 832 quoting *Schlauch v. Hartford Accident & Indemnity Co.* (1983) 146 Cal.App.3d 926, 936.)

“Liability for intentional infliction of emotional distress “does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.” [Citation.]’ [Citations] [¶] With respect to the requirement that a plaintiff show severe emotional distress, [the Supreme Court] has set a high bar. ‘Severe emotional distress means “emotional distress of such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it.” (*Jackson v. Mayweather* (2017) 10 Cal.App.5th 1240, 1265 quoting *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1051.)

“It is for the court to determine in the first instance whether the defendant’s conduct may reasonably be regarded as so extreme and outrageous as to permit recovery.” (*Ibid.*)

The SAC alleges that Mr. Figueroa informed Ms. Duarte that she was going to receive a 3-day notice to move out “or he would have her ‘handcuffed and pulled out the front door’” (¶51), posted the 3-day notice on Ms. Duarte’s door and did not give her a reason why (¶ 52), and “threatened both Plaintiffs with violence.” (¶ 53.)

To begin with, informing a person they will be posting a 3-day notice to move and then doing so does not constitute ‘extreme and outrageous conduct,’ especially when there are no allegations that the 3-day notice to quit was improper. There are no allegations that the eviction was illegal or improper, just that Defendants did not provide a reason for the 3-day notice. Plaintiffs have cited no law requiring an explanation. While the threat that he would have her ‘handcuffed and pulled out the front door,’ is certainly unwarranted, liability for intentional infliction of emotional distress “does not extend to mere indignities [or] threats....” (*Jackson*, 10 Cal.App.5th at 1265.)

Likewise, such liability does not extend to the general allegation that Mr. Figueroa “threatened both Plaintiffs with violence.” How did he make such threats, were they credible threats, were they even made in person, did Plaintiff’s perceive the threats as credible? No such information is provided. The SAC must allege “with ‘great specificity’ the acts” which Plaintiffs believe support this claim. These general allegations are insufficient.

The SAC also fails to properly plead that Plaintiffs suffered severe emotional distress beyond the conclusory allegation that such occurred. “The complaint must plead specific facts that establish severe emotional distress resulting from defendant’s conduct.” (*Michaelian v. State Comp. Ins. Fund* (1996) 50 Cal.App.4th 1093, 1114.) Plaintiffs must plead specifics facts demonstrating the nature, extent, and duration of their alleged emotional distress. (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) No such allegations appear in the SAC.

Defendant’s demurrer to the intentional infliction of emotional distress cause of action is **sustained**.

Negligence

“The essential elements of a cause of action for negligence are: (1) the defendant’s legal duty of care towards the plaintiff; (2) the defendant’s breach of duty – the negligent act or omission; (3) injury to the plaintiff as a result of the breach – proximate or legal cause; and (4) damage to the plaintiff.”

(*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1103.)

It is unclear what duty allegedly exists, how Defendant Figueroa breached that duty, and what damages were caused by that alleged breach. In the Negligence cause of action, it is alleged that Defendant Figueroa informed Ms. Duarte that she was going to receive a 3-day notice to quit and yelled at her about this. (§ 75.) As outlined above, there are other allegations that Mr. Figueroa posted the 3-day notice on Ms. Duarte's door and did not give her a reason why (§ 52), and "threatened both Plaintiffs with violence." (§ 53.) None of these allegations explain what duty Mr. Figueroa had to Plaintiffs that was breached.

Plaintiff argues that these actions are a "general breach of duty," citing Civil Code § 1714. (Opp. at 6:10-14. Civil Code § 1714 states, in relevant part:

Everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury upon himself or herself.

Plaintiffs do not explain how this general duty relates to allegations of yelling at someone. As noted above, there are allegations that Mr. Figueroa posted a 3-day notice on Ms. Duarte's door. However, there are no allegations this was done improperly. Plaintiffs' reference to the *Rowland* factors likewise do not explain what duty is being asserted or how it links to the actions of Mr. Figueroa. Plaintiffs' mention of a landowner's duty appears to be even more far afield as there are no allegations the Mr. Figueroa is a landowner. Mr. Figueroa is instead alleged to be an employee of the entity that operates the retirement community where the alleged incidents took place.

Plaintiff's citation to *Di Mare v. Cresci* (1962) 58 Cal.2d 292 and *Burks v. Blackman* (1959) 52 Cal.2d 715 are inapplicable. Those cases discuss a landlord's liability for defective condition of property – i.e. physical defects that caused injury. They do not relate to claims of general negligence for non-physical injuries such as those alleged in this matter.

In addition to the above, there are no allegations linking any of the above allegations to any damages suffered by Plaintiffs.

Defendant's demurrer to the negligence cause of action is **sustained**.

Retaliation – violation of Civil Code § 1942.5

Code of Civil Procedure § 1942.5 states, in relevant part:

If the lessor retaliates against the lessee because of the exercise by the lessee of the lessee's rights under this chapter or because of the lessee's complaint to an appropriate agency as to tenantability of a dwelling, and if the lessee of a dwelling is not in default as to the payment of rent, the lessor may not recover possession of a dwelling in any action or proceeding, cause the lessee to quit involuntarily, increase the rent, or decrease any services within 180 days of any of the following:

(1) After the date upon which the lessee, in good faith, has given notice pursuant

to Section 1942, has provided notice of a suspected bed bug infestation, or has made an oral complaint to the lessor regarding tenantability.

Plaintiff argues that this cause of action is based on “complaints to Mr. Figueroa that Mikki created a hostile living environment and then to upper management that Mr. Figueroa was threatening them to leave....” (Opp. at 7:16-18.) Plaintiff fails to cite, however, any paragraphs of the SAC that make these allegations. The Court is unable to find any such allegations.

In addition, none of those above actions appear to relate to “tenantability” of the Plaintiffs’ residences. Civil Code § 1941.1 states that a dwelling “shall be deemed untenable” if it lacks certain characteristics, such as effecting waterproofing and weather protection, sufficient heating facilities, electrical and wiring that complies with applicable laws, and clean and sanitary conditions of the premises. (Civ. Code § 1941.1 (a) (1)-(11).) In other words, “tenantability” relates to the physical characteristics of the premises. There are no allegations that the premises were deficient in any physical way.

Defendant’s demurrer to the retaliation cause of action is **sustained**.

Breach of Covenant of Quiet Enjoyment

“In the absence of language to the contrary, *every lease* contains an implied covenant of quiet enjoyment, whereby the **landlord impliedly covenants** that the tenant shall have quiet enjoyment and possession of the premises. (*Andrews v. Mobile Aire Estates* (2005) 125 Cal.App.4th 578, 588 emphasis added.) This implied covenant “gives rise to **duty in the landlord** ‘to preserve that quiet enjoyment of all tenants.’” (*Ibid.* emphasis added.)

There are no allegations that Mr. Figueroa is Plaintiffs’ landlord. Instead, the SAC alleges that Plaintiffs resided at the retirement center “pursuant to a lease agreement with Sunshine Retirement Living and/or Sunshine Retirement Living LLC through their agent, Quail Lodge Retirement Community.” (§ 10 all caps removed.) This indicates that the Sunshine Entities are the landlord.

Plaintiffs argue that a party may “sue a third party for their actions that are attributable to the landlord,” citing *Nativi v. Deutsche Bank* (2014) 223 Cal.App.4th 261.) Plaintiffs do not provide a pin cite as to where in the almost 60-page opinion this statement of law is made. The Court notes that case did not involve claims against a third party but instead was limited to claims made against the landlord and the landlord’s successor in interest of the property. As such, it cannot stand for the claim asserted by Plaintiffs. “[I]t is well established that cases do not stand for propositions not addressed therein: ‘It is axiomatic ... that a decision does not stand for a proposition not considered by the court.’” (*Thomas v. Stenberg* (2012) 206 Cal.App.4th 654, 664 quoting *Agnew v. State Bd. of Equalization* (1999) 21 Cal.4th 310, 332.)

Likewise, Plaintiffs’ citation to *People v. Pacific Landmark, LLC* (2005) 129 Cal.App.4th 1203 and *People v. Brawn* (2020) 49 Cal.App.5th 342 do not support Plaintiffs’ position. Neither of those cases involve a claim for breach of the covenant of quiet enjoyment. Instead, they involve nuisance claims.

While it may be true that a breach of the covenant of quiet enjoyment may be premised on the activities of a third party, the claim is still one against the landlord. (*Andrews*, *supra*, 125 Cal.App.4th at 588-89.) It is not a claim against the third party for breach of the covenant which is contained in the

lease with the landlord.

Defendant's demurrer to the breach of covenant of quiet enjoyment cause of action is **sustained**.

Wrongful Eviction

While California recognizes the tort of wrongful eviction, this is also a cause of action that is properly directed toward a landlord – not an employee thereof. (*Nativi*, supra, 223 Cal.App.4th at 293-94.) Again, Mr. Figueroa is not alleged to be the landlord. As such, this cause of action is not properly asserted against him.

Defendant's demurrer to the wrongful eviction cause of action is **sustained**.

Elder Abuse

The elements of a cause of action for Elder Abuse based on neglect are: (1) defendant had a substantial caretaking or custodial relationship with plaintiff, involving ongoing responsibility for plaintiff's basic needs, which an able-bodied and fully competent adult would ordinarily be capable of managing without assistance; (2) the plaintiff was 65 years of age or older while in defendant's care or custody, (3) that defendant failed to use the degree of care that a reasonable person in the same situation would have used in providing for plaintiff's basic needs, (4) that plaintiff was harmed, and (5) defendant's conduct was a substantial factor in causing plaintiff's harm. (*See* Welf. & Inst. Code §§ 15610 *et seq.*; *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 783.)

As the California Supreme Court has determined, the Elder Abuse "Act does not apply unless the defendant health care provider had a substantial caretaking or custodial relationship, involving ongoing responsibility for one or more basic needs, with the elder patient." (*Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal.4th 148, 152.) As the Court explained, it is the "nature of the elder or dependent adult's relationship with the defendant – not the defendant's professional standing – that make the defendant potentially liable for neglect." (*Ibid.*)

Neglect under the Elder Abuse Act, as relevant here, is defined to mean: "The negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise." (Welf. & Inst. Code § 15610.57(a)(1).) Complementing this definition "is the statute's explicitly nonexhaustive list of 'neglect' examples," including "failures 'to assist in personal hygiene' or to provide 'food, clothing, or shelter'; 'to provide medical care for physical and mental health needs'; 'to protect from health and safety hazards'; and 'to prevent malnutrition or dehydration.'" (*Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal.4th 148, 156 internal citations omitted.)

What this list of examples "seem[s] to contemplate is the existence of a robust caretaking or custodial relationship – that is, a relationship where a certain party has assumed a significant measure of responsibility for attending to one or more of an elder's basic needs that an able-bodied and fully competent adult would ordinarily be capable of managing without assistance." (*Id.* at 158.) "One would not normally expect an able-bodied and fully competent adult to depend on another for 'assist[ance] [with] personal hygiene' or 'protect[ion] from health and safety hazards,' any more than one would expect a party with only circumscribed, intermittent, or episodic engagement to be among

those who ‘hav[e] ... care or custody’ of someone who may be particularly vulnerable.” (*Ibid.*)

As the Court explained, its prior case law “illustrates the type of caregiving or custodial relationship that the Act requires: one where a party has accepted responsibility for attending to the basic needs of an elder or dependent adult.” (*Id.* at 161.) The phrase “care or custody” as used in the Act “evokes a bond that contrasts with a casual or temporally limited affiliation.” (*Ibid.*)

The SAC alleges that Mr. Figueroa was the executive director of Quail Lodge. There are no allegations that he provided any health or welfare services directly to Plaintiffs. Nor are there any allegations that he “assumed a significant measure of responsibility for attending to one or more of an elder’s basic needs....” Instead, the allegations are limited to a small number of interactions where he allegedly yelled at and threatened Plaintiffs and posted a 3-day notice on Ms. Duarte’s door.

Plaintiffs in opposition highlight the definition of neglect which includes the failure to provide food or shelter, but do not explain what the import of those provisions are with relation to the allegations in the SAC. Again, there are no allegations that Mr. Figueroa ever provided Plaintiffs with food or healthcare. Nor did he directly provide them with shelter. In addition, there are no allegations that the corporate landlord employers were responsible for providing food and/or healthcare to Plaintiffs.

Defendant’s demurrer to the elder abuse cause of action is **sustained**.

Negligent Hiring, Training, Supervision, & Retention

“**An employer may be liable** to a third person for the employer’s negligence in hiring or retaining an employee who is incompetent or unfit.” (*Phillips v TLC Plumbing, Inc.* (2009) 172 Cal.App.4th 1133, 1139 emphasis added.) “Negligence liability will be imposed on **an employer** if it ‘knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.’” (*Ibid.* emphasis added.)

Mr. Figueroa is not alleged to be an employer of any of the people involved in this matter. Instead, Mr. Figueroa is alleged to be the employee of the Sunshine Entities. Plaintiffs fail to cite any authority which indicates that this cause of action can be asserted against an employee of an entity. Even if it could, there are no allegations that Mr. Figueroa hired, trained, or supervised any of the people involved in this matter.

Defendant’s demurrer to the negligent hiring, training, supervision, and retention cause of action is **sustained**.

Leave to Amend

“[T]he burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading.” (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.)

In the conclusion of their Opposition, Plaintiffs request leave to amend without attempting to make any showing as to how they can amend to state any of the above causes of action. A trial court does not abuse its discretion in denying leave to amend when the moving party “merely stated in its opposition to [the] demurrer [or motion to strike] that ‘if the Court finds the operative complaint

deficient, Plaintiff respectfully requests leave to amend....” (*Major Clients Agency v. Diemer* (1998) 67 Cal.App.4th 1116, 1133.)

However, the “Supreme Court has observed that where ‘plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.’” (*Eghetesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412 quoting *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.)

Thus, as this is the first time the Court has addressed the above causes of action as to this Defendant, the Court will grant leave to amend to the extent that complaint shows it is capable of amendment. “Leave to amend should be denied where the facts are not in dispute and the nature of the claim is clear, but no liability exists under substantive law.” (*Jenkins v. JPMorgan Chase Bank, N.A.* (2013) 216 Cal.App.4th 497, 535 quoting *Lawrence v. Bank of Am.* (1985) 163 Cal.App.3d 431, 436 multiple citations omitted.)

Here, as explained in detail above, Plaintiffs causes of action for (1) breach of covenant of quiet enjoyment, (2) wrongful eviction, and (3) negligent hiring, training, supervision, and retention, are only properly asserted against the landlord. The SAC makes clear that the entity Defendants are the landlord and the Mr. Figueroa is only an employee thereof. As such, it does not appear that the SAC is capable of amendment to properly assert those claims against Mr. Figueroa. As such, leave to amend is **denied** as to those causes of action.

As Plaintiffs’ opposition asserts that they agreed to dismiss the assault cause of action, the Court **denies** leave to amend as to that cause of action as well.

Conclusion

Defendant’s Demurrer is **sustained** in full as to each cause of action. Plaintiffs are **granted leave to amend** as to the following claims:

- Intentional infliction of emotional distress
- Negligence
- Retaliation
- Elder abuse

Leave to amend is **denied** as to the following claims:

- Assault
- Breach of covenant of quiet enjoyment
- Wrongful eviction
- Negligent hiring, training, supervision, and retention.

Plaintiffs shall file any amended complaint within 10 calendar days of notice of the entry of the order on this Demurrer.